

House File 437

H-1075

1 Amend House File 437 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. SHORT TITLE. This Act shall be known and may be
5 cited as the "Center for Intellectual Freedom Act".

6 Sec. 2. NEW SECTION. 263C.1 Definitions.

7 As used in this chapter, unless the context otherwise
8 requires:

9 1. "*Board*" means the state board of regents.

10 2. "*Center*" means the center for intellectual freedom
11 established by section 263C.2.

12 3. "*Regents institution*" means an institution specified in
13 section 262.7, subsections 1 through 3.

14 4. "*University*" means the state university of Iowa.

15 Sec. 3. NEW SECTION. 263C.2 Center for intellectual
16 freedom.

17 1. A center for intellectual freedom is established as an
18 independent academic center under the board at the university.

19 2. The center shall conduct teaching and research in the
20 historical ideas, traditions, and texts that have shaped the
21 American constitutional order and society.

22 3. The board may name the center in accordance with any
23 philanthropic naming policies or practices of the board or
24 university.

25 Sec. 4. NEW SECTION. 263C.3 Functions of the center.

26 1. The center shall provide scholarship in all of the
27 following subjects:

28 a. The texts and major debates that form the intellectual
29 foundation of free societies, especially that of the United
30 States.

31 b. The principles, ideals, and institutions of the American
32 constitutional order.

33 c. The foundations of responsible leadership and informed
34 citizenship.

35 2. The center shall offer university-wide programming

1 related to the values of free speech and civil discourse.

2 3. The center shall work to do all of the following:

3 a. Expand the intellectual diversity of the university's
4 academic community.

5 b. Foster civic engagement among university students and
6 faculty.

7 c. Coordinate with the center for cyclone civics at Iowa
8 state university and the center for civic education at the
9 university of northern Iowa to enable academic offerings that
10 may be offered to students at any of the regents institutions
11 either in person or online.

12 4. The center, in collaboration with any of the regents
13 institutions, may offer courses; develop certificate, minor,
14 and major programs as well as graduate programs; and offer
15 degrees.

16 5. The center shall offer at least one three-semester
17 credit hour course in American history and civil government.
18 If a regents institution has established general education
19 requirements for undergraduate students that include an
20 American heritage course requirement, the center shall ensure
21 that the course satisfies that requirement. The center shall
22 coordinate with the center for cyclone civics at Iowa state
23 university and the center for civic education at the university
24 of northern Iowa to ensure that the course is offered to
25 students at each regents institution either in person or
26 online.

27 Sec. 5. NEW SECTION. 263C.4 Bylaws.

28 The center shall establish bylaws governing the center
29 subject to the approval of the board. In addition to any
30 other bylaws established, the bylaws must include all of the
31 following requirements, which shall take precedence over any
32 other requirements in the bylaws:

33 1. The center shall educate students by means of free, open,
34 and rigorous intellectual inquiry to seek the truth.

35 2. The center affirms its duty to equip students with

1 the skills, habits, and dispositions of mind they need to
2 reach their own informed conclusions on matters of social and
3 political importance.

4 3. The center affirms the value of intellectual diversity
5 in higher education and aspires to enhance the intellectual
6 diversity of the university.

7 4. The center affirms a commitment to create a community
8 dedicated to an ethic of civil and free inquiry, which respects
9 the intellectual freedom of each member, supports individual
10 capacities for growth, and welcomes the differences of opinion
11 that naturally exist in a public university community.

12 Sec. 6. NEW SECTION. 263C.5 Funding — use.

13 1. The center may accept and administer private and
14 external donations and gifts. The university of Iowa center
15 for advancement shall be the designated foundation for
16 philanthropic gifts or funding for the center.

17 2. Any moneys appropriated to the center, and any private
18 and external donations to the center, shall be used only for
19 the direct operation of the center.

20 3. Any additional funding required to operate the center
21 shall be proportionally provided by the regents institutions,
22 subject to approval of the board.

23 Sec. 7. NEW SECTION. 263C.6 Center faculty.

24 The university shall employ tenure-eligible faculty members
25 to provide instruction through the center. The university
26 shall incrementally increase the number of such faculty to five
27 based on market research and student demand. Faculty members
28 appointed to the center may hold joint appointments to other
29 academic units of the university. Faculty members who are not
30 affiliated with the center shall have no authority to approve,
31 deny, or modify the terms of appointment of faculty to the
32 center.

33 Sec. 8. NEW SECTION. 263C.7 Advisory council.

34 1. No later than December 31, 2025, the board shall appoint
35 an advisory council for the center.

1 2. The board shall appoint a minimum of nine members to the
2 council. A majority of the members appointed to the council
3 shall constitute a quorum. No more than one member of the
4 council may be an employee of the university.

5 3. The board shall determine the initial length of each
6 member's term in accordance with this subsection. A majority
7 of the members initially appointed to the council shall serve
8 initial terms of four years. The remaining initially appointed
9 members shall serve initial terms of two years. The board
10 shall appoint new members to fill vacancies on the council in
11 accordance with this section.

12 Sec. 9. NEW SECTION. **263C.8 Appointment of director.**

13 1. The advisory council established under section 263C.7
14 shall conduct a nationwide search for candidates for the
15 director of the center. The council shall adhere to all
16 relevant state and federal laws in conducting the search. The
17 council shall submit finalists for the position to the board.
18 The board, upon approval of a candidate, shall appoint the
19 candidate as the director. All subsequent directors shall be
20 chosen in the same manner.

21 2. The director shall have the academic standing to be
22 eligible for tenure at a regents institution.

23 Sec. 10. NEW SECTION. **263C.9 Duties of director.**

24 1. The director of the center shall have the sole and
25 exclusive authority to manage the recruitment and hiring
26 process, and to extend offers for employment, of the center
27 and to terminate employment of all staff of the center in
28 accordance with state and federal law.

29 2. The director shall conduct a market assessment to
30 determine course demand and the number of faculty required to
31 meet any unmet needs of the center and may conduct additional
32 market assessments as needed. A market assessment shall
33 include the subjects described in section 263C.3, subsections 1
34 and 2.

35 3. The director shall have the authority to invite guest

1 speakers to the university on behalf of the center.

2 4. The director shall report directly to the board.

3 Sec. 11. NEW SECTION. **263C.10 Annual report.**

4 Beginning in 2026, the director of the center shall submit an
5 annual report to the governor, the general assembly, and the
6 board of regents by December 31. The report shall provide a
7 full account of the center's achievements and shall identify
8 any opportunities, challenges, and obstacles in the development
9 of the center.>

10 2. Title page, by striking line 1 and inserting <An Act
11 establishing a center for intellectual freedom at the>

COLLINS of Des Moines